

An Example Using the Tufte Style

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CIVIL-MILITARY RELATIONS IN THE MALOLOS REPUBLIC

Revolution was a core part of Philippine history time and time again as the country fought tooth and nail. Current historiographic accounts of the Malolos Republic have well reiterated the civil-military tension i

Malolos in 1898

The Philippine Revolution had come to a temporary standstill at the start of 1898. As part of the pact of Biak na Bato, Emilio Aguinaldo had left the Philippines on December 27, 1897 to Hong Kong, effectively halting the Revolution. Tension in the Philippines remained until May 1, 1898, when Spain had been defeated in the battle of Manila Bay by the U.S. Navy, as mentioned in documents involving communications between the Navy's commander and secretary, George Dewey and John Long. Spain was determined to have experienced heavy losses, losing many lives and naval vessels sunken (Naval History and Heritage Command 2015). Due to the Spaniards no longer having control over Manila Bay, their control over the Philippine Islands had begun to dwindle. Sensing the tide shifting, Aguinaldo returned to the Philippines on May 19. Aguinaldo returned to a Philippine nation eager for independence. The latent nationalistic zeal of revolutionaries as well as common people, inculcated by the Propaganda Movement but stalled in the stalemate had now exploded. Aguinaldo responded to this eagerness in kind: not even a month later, on June 12, Aguinaldo proclaimed the independence of the Philippines in Cavite. A few days later on June 18 through a decree, he established a "Dictatorial Government with full authority, civil and military, in order to determine first the real needs of the country". Looming in the background, however, was the constant threat of US invasion. Although the US fought off the Spaniards and were the ones to urge Aguinaldo to return, Aguinaldo was naturally distrustful of the US. Thus two of the primary objectives of the nascent government were to (1) drive out the Spanish officials and friars in towns, while at the same time (2) prepare for the threat of US invasion. On the other hand, as a government serving as the foundation for "a Republic of the Philippines as a government of the people, by the people, and for the people.", and facing a Filipino people with a hunger for democracy inculcated by the Propaganda Movement, an arguably greater objective of the government was to represent the people. This sets the stage for the civil-military conflict which plagued Aguinaldo and the Revolutionary Congress. The

problem is that in wartime, the military may be inclined to oppose civilian supremacy, a phenomenon called militarism. As we will see, Aguinaldo was cognizant of the perils of militarism and in his decrees explicitly took measures to curtail their power. Nevertheless, the reality of the wartime situation compelled Aguinaldo to place certain responsibilities on the military which sometimes overlapped with the civil functions of the government.

The Civil-Military Divide The concept of civilian supremacy is of utmost importance in a democratic state. The military, as a tool of the government, is meant to serve the best interests of the people. However, as the military yields a monopoly on violence, various measures must be taken to curtail its powers. One measure in today's societies, for instance, is that the military answers to the commander-in-chief who is a civilian. The commander-in-chief, head of the executive branch of government, in turn, answers to the legislative branch, who represent the "voice of the people". However, in wartime, when quick decision making is of paramount importance and the military plays a heightened role for the wellbeing of the state, the . Local town mayors were given the responsibility to organize these forces and the authority regarding their executive decisions; However, these forces were placed under the command of a lieutenant rank officer according to the Decree of June 20 (Guevara 1972, Rule 12, 22). Regardless of the force being under the command of a military officer, Rule 13 decrees that the local force must listen to the local civil officials whether they are the town mayor or a provincial governor. Furthermore Rule 14 on the organization of police forces states that "The military commanders of each province may utilize said forces in case of real need, upon previous consent of the town mayor or of the provincial governor where such consent is feasible.", showing that military precedence required military officials to seek explicit permission from a civilian government official. Emilio Aguinaldo, the president of the First Philippine Republic, also explicitly stated that "The military chiefs appointed by this Government from each province shall not intervene in the administration of this Government, limiting themselves to requesting the needed help from the chiefs of provinces and towns which shall not be denied in cases of real need" (Guevara, Article 8, 11), showcasing that unless the military was at risk of being overrun and required support, the civilian government took precedence. Even so, Article 9 dictates the assignment of a provincial military commander who is directly in charge of applying the provisions of the decree, giving them more direct authority regarding the local forces, merely needing approval from local officials. The republic had been trying to bolster their forces and be prepared for any possible attacks or altercations, while keeping

the military in check to avoid military authority undermining civilian protections and rights. There were also various institutional changes implemented in order to provide civil departments and authorities with control over various military affairs amidst the presence of a revolutionary government. The civilian government and the military had initially prioritized civil supremacy, emphasizing the rights and protection of the civilians even with the decreed military expansion. However, the rights and protections were to be undermined over the course of the republic's lifespan, as military officials began claiming the same prerogatives as officials of various municipalities, leading to overlapping functions and friction between civilian and military government. (Guerrero, Provincial Elites, 173-175).

Institutional

A new civil department was established to give the civil authorities the power to manage military affairs in multiple avenues such as military justice, in which military crimes committed by those within the militia are tried by a council of war, administration, where record keeping and registry regarding military service are determined such as Rule 15 of the June 20 Decree, and sanitation, ____.

It would be the events of February 4, 1899, when US forces would come into direct contact with the Philippine Revolutionary Army, which was recorded by Emilio Aguinaldo in chapter 19 of his Manifesto, True Version of the Philippine Revolution. Although the outbreak of the Philippine-American war did not immediately lead to the military undermining civilian rule, distrust between civilian and military leaders began to sow. Due to sudden hostilities with the US, Aguinaldo declared on February 4 that grants military officials greater power than civilian officials throughout Luzon. Such an order was viewed by civilian leaders as a violation of the original decrees issued by Aguinaldo regarding the subservience of the military to the civilian government. In response to the backlash from civilian government officials, Aguinaldo would backtrack on his declaration and reaffirm the original stance of military subservience (Guerrero, Provincial Elites, 173). It was from this point that the military slowly but steadily began its usurpation of power throughout 1898, accelerating the outbreak of the Philippine-American War. It is important to note, however, that the civilian government was already having trouble with controlling the military prior to the outbreak of the war. A noteworthy chain of events was described in a report dispatched to President Aguinaldo, which was sent on December 27, 1895, at 5 in the morning. The report states that "Most urgent. The discontent in the provinces of Pangasinan, Tarlac and Yloco (Ilocos) is increasing. The town of Bangbang rose in revolt the 25th and 26th

of this month, and killed all of the civil officials. It is impossible to describe the abuses committed by the military and civil authorities of the said provinces. I urge you to send a force of 100 men and a diplomatic officer to reestablish order. The matter is urgent. I would like your decision in regard to the Tondo station, which is within the American line.” (Taylor, page 35). Civilian leaders across various provinces complained to the central government about their loss of control. Officials in Bataan, Zambales, Tayabas, and Isabela, reported provincial military commanders as having invaded the office of civilian officials, leading them to be left virtually powerless. To add insult to injury, these civilian officials were often blamed by the public for whatever abuses the military carried out (Philippine insurrection records). To combat the rise of militarism, Apolinario Mabini would write a letter to Aguinaldo urging him to take control of the military as a strong executive, on February 28, 1899. Mabini argued that Aguinaldo’s military dictatorship was necessary not for the subjugation of the townspeople but to repress the abuses of the army. He hoped that Aguinaldo could use his powers as chief of the army to have soldiers be subservient to him, where can force them to stop their abuses (Majul, 185). However, Mabini’s request for a military dictatorship led by Aguinaldo was a direct contradiction to Article 4 of the Constitution, which states that “The Government of the Republic is popular, representative, alternative, and responsible, and shall exercise three distinct powers: namely, the legislative, the executive, and the judicial. Any two or more of these three powers shall never be united in one person or cooperation, nor the legislative power vested in one single individual.”, emphasizing a clear separation of powers that was to prevent a single individual or cooperation from taking more than one position, namely the legislative, executive, and judicial arm of the government. In addition to Article 4, a military dictatorship conflicted with several other articles of the Constitution. Titles 5 and 6, according to Calderon, established that the legislative arm of the government was to act as a counter-force to the military. This legislature was meant to ensure that the President of the Republic and other military officials could be tried for violating the titles and acts of the constitution. A military dictatorship would bypass this legislative supremacy. A military dictatorship would have also threatened the bill of rights (The LawPhil Project, Articles 6 to 32) granted to citizens. Interestingly enough, Mabini himself would recognize this contradiction and attempt to defend his stance by stating that it was not possible for the government to honor civil liberties in a time of war, where military dominance is necessary. Article 30 states that even in times of heightened tensions, the constitution could only be suspended temporarily, requiring approval of

the national assembly. Therefore, Aguinaldo could not unilaterally impose a military dictatorship without violating the constitution, which mandated legislative approval. Although many abuses by the military occurred in various parts of the Philippines, it was the Guardia de Honor who perhaps provides the starkest example of how provincial instability forced the civilian government to rely on the military, which in turn bypassed constitutional safeguards meant to prevent dissent. The Guardia de Honor were originally created by Spanish authorities to “provide a devout escort for the Virgin’s image during sacred processions”, this group would go on to transform into a radical anti-elite peasant movement after the Spanish Friars were arrested or fled during the revolution. The Guardia de Honor blamed the revolutionary movement for the loss of their spiritual guidance, leading to an uprising against the Malolos Republic across Pangasinan, Tarlac, and La Union in late 1898 and early 1899. In their uprising, they would go onto pillage government buildings, destroy official records, and violently attack prominent families loyal to Aguinaldo’s government. In an attempt to establish a safe haven for their operations, they would form a massive theocratic communal society in Cabaruan, Pangasinan, where tens of thousands of peasants migrated after confiscating rice, livestock, and lands from wealthy principales. The inability of the civilian government to maintain order caused immense panic among provincial elites, leading civilian administrators in Tarlac to desperately telegraph Aguinaldo for military reinforcements, martial law, and the creation of armed militias to protect them from the peasants (Sturtenvart, *Guardia de Honor*, 345-347). The military’s response to the Guardia de Honor totally undermined the newly drafted Malolos Constitution, particularly its bill of rights, which explicitly stated that no Filipino could be prosecuted or sentenced except by a judge and competent court (Article 14). A specific example of this constitutional subversion occurred in Tarlac, which involved a faction of the Guardia de Honor led by ex-seargent Pedroche. Pedroche and his faction successfully took control of four towns and gathered immense popular support (Taylor, page 36). Fearing of Pedroche’s growing influence, Aguinaldo’s military commander of Tarlac bypassed all legal and civilian procedures, resorting instead to treachery and mass murder. This was done by the local town president, who was loyal to the president, inviting Pedroche and his officers to a festivity under the pretense of recognizing Pedroche as his chief. After the meal, Pedroche and his offers were ambushed by the military and quickly executed (Taylor, page 36). Therefore, instead of dealing with the rebels through the legal framework established by the constitution or courts utilized by the civilian government, the revolutionary military routinely hunted

down and performed extrajudicial executions. This highlights that, despite the Malolos Constitution's guarantees of individual liberties and civilian supremacy, the military operated with unchecked dictatorial power in the provinces whenever the state was threatened.